

26STCV16658 26STCV16658

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-17

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Case Number: 26STCV16658 Hearing Date: August 17, 2026 Dept: 406

ILANA MONTOYA,

Plaintiff,

v.

ENVISION WC AU AUTO,

LLC, et al.,

Defendants.

Case No.: 26STCV16658

Hearing Date: August 17, 2026

[TENTATIVE]

order RE:

plaintiff's motion for leave to file

first amended complaint

BACKGROUND

On May 26, 2026, Plaintiff Ilana

Montoya filed this action against Defendants Envision WC AU Auto, LLC, et al.

for employment discrimination, retaliation, failure to prevent, and negligent

hiring.

On July 22, 2026, Plaintiff filed
the instant motion for leave to amend.

DISCUSSION

“[I]n all cases where a party has an
attorney in the action or proceeding, the service of papers, when required,
must be upon the attorney instead of the party.” (Code Civ. Proc., § 1015.)

Here, the proof of service attached
to the motion indicates that Plaintiff served the motion directly to the
Envision defendants and Ayman Sarriedine, who are represented by counsel. The
proof of service does not otherwise indicate service upon Defendants' counsel
of record. Mark Amri is the only pro per defendant. Therefore, the motion is
denied for lack of proper service.

CONCLUSION

Plaintiff's motion for leave to
amend is DENIED.